

43 NEGROES FINED IN RALEIGH COURT

**Students Convicted for Roles
in Lunch Counter Sit-In—
Protests Continue**

RALEIGH, N. C., March 28 (AP)—Forty-three Negro students charged with trespassing during lunch counter protests were convicted here today.

City Court Judge Albert Doub ordered two of the forty-three, James A. Fox and Albert R. Sampson, to pay fines of \$25 and costs each. They were arrested last Monday at the McClellan's store in downtown Raleigh.

The other forty-one were ordered to pay fines of \$10 each and costs. They were arrested on the sidewalk near a Woolworth store in Raleigh's Cameron Village several weeks ago.

Lawyers for the forty-three served notice of appeal.

In each case, Judge Doub denied a defense motion for a non-suit. The written motions contended that the state's trespass law, which says in effect that a merchant may serve the customers he wishes to serve, was unconstitutional.

The group of forty-one cases were all tried upon an agreed statement of facts and were disposed of in rapid-fire order. The trial of Fox and Sampson took another hour.

A policeman said he had arrested the youths after the store manager had repeated in his presence a request that the students leave the lunch counter and they declined to leave.

"They told me that's what they wanted—to be arrested," said the policeman. Sampson denied saying this.